VENDOR SERVICE CONTRACT

Copper Magnolia Gardens | Nashville, TN

Owner	Copper Magnolia Gardens Owner LLC
Contractor	NorthStar Security Patrol
Services	security patrol services
Property	Copper Magnolia Gardens
Effective Date	November 25, 2024

1. Scope of Services. Contractor shall furnish all labor, materials and equipment necessary to perform security patrol services at Copper Magnolia Gardens in accordance with the specifications attached hereto. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

2. Term and Termination. This Contract commences on the Effective Date for a term of 36 months and may be terminated by either party on thirty days' written notice. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

3. Compensation. Owner shall pay Contractor the monthly fee set forth in the Pricing Schedule within thirty days of receipt of an approved invoice. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of TN. Time is of the essence with respect to each and every provision of this instrument.

4. Insurance. Contractor shall maintain commercial general liability of $1,000,000, workers' compensation at statutory limits and automobile liability of $1,000,000. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of TN.

5. Independent Contractor. Contractor is an independent contractor and not an employee, agent or partner of Owner or its property manager. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

6. Standard of Performance. Services shall be performed in a professional and workmanlike manner by qualified personnel in compliance with applicable laws. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

7. Indemnification. Contractor shall indemnify, defend and hold harmless Owner and Manager from claims arising out of the performance of the services. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of TN. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

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8. Service Levels. Contractor shall respond to emergency calls within four hours and routine requests within two business days. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of TN.

9. Scope of Services. Contractor shall furnish all labor, materials and equipment necessary to perform security patrol services at Copper Magnolia Gardens in accordance with the specifications attached hereto. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

10. Term and Termination. This Contract commences on the Effective Date for a term of 41 months and may be terminated by either party on thirty days' written notice. Time is of the essence with respect to each and every provision of this instrument. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

11. Compensation. Owner shall pay Contractor the monthly fee set forth in the Pricing Schedule within thirty days of receipt of an approved invoice. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

12. Insurance. Contractor shall maintain commercial general liability of $1,000,000, workers' compensation at statutory limits and automobile liability of $1,000,000. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

13. Independent Contractor. Contractor is an independent contractor and not an employee, agent or partner of Owner or its property manager. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Time is of the essence with respect to each and every provision of this instrument.

14. Standard of Performance. Services shall be performed in a professional and workmanlike manner by qualified personnel in compliance with applicable laws. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

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15. Indemnification. Contractor shall indemnify, defend and hold harmless Owner and Manager from claims arising out of the performance of the services. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

16. Service Levels. Contractor shall respond to emergency calls within four hours and routine requests within two business days. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of TN.

17. Scope of Services. Contractor shall furnish all labor, materials and equipment necessary to perform security patrol services at Copper Magnolia Gardens in accordance with the specifications attached hereto. Time is of the essence with respect to each and every provision of this instrument. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

18. Term and Termination. This Contract commences on the Effective Date for a term of 27 months and may be terminated by either party on thirty days' written notice. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

19. Compensation. Owner shall pay Contractor the monthly fee set forth in the Pricing Schedule within thirty days of receipt of an approved invoice. Time is of the essence with respect to each and every provision of this instrument. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of TN.

20. Insurance. Contractor shall maintain commercial general liability of $1,000,000, workers' compensation at statutory limits and automobile liability of $1,000,000. Time is of the essence with respect to each and every provision of this instrument. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of TN.

21. Independent Contractor. Contractor is an independent contractor and not an employee, agent or partner of Owner or its property manager. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of TN. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

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